

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF LOT 6, ALL OF LOTS 7 AND 8, AND THE WEST 12 FEET OF LOT 9, BLOCK 2, PLUS THAT ADJACENT 8 FEET OF VACATED ALLEY, COULSON ADDITION, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO RAWLINS STREET, WEST OF MCCANN AVENUE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Leonard Golding, owner of the parcel of land being situated in a portion of Lot 6, all of Lots 7 and 8, and the west 12 feet of Lot 9, Block 2, plus that adjacent 8 feet of vacated alley, Coulson Addition, Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffery B. Jones, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR Medium Density Residential – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT

Coulson Addition

Annexation Summation

CASE NUMBER: UDC-15-00440

SUBDIVISION CODE: CSN

PREPARED BY: Joshua M. Tetzlaff

PUBLIC HEARING: August 10, 2015

REQUIRED DOCUMENTS: The following documents have been submitted and reviewed by staff:

- Complete Application
- Petition Signed by property owners
- Annexation Map 150702
- Soils Report (deferred to time of development)
- Signed clearance from the Board of Public Utilities

STAFF RECOMMENDATION

Staff recommends approval of the annexation application for Coulson Addition.

ANNEATION REPORT & STAFF REPORT

Coulson Addition Annexation

Annexation

CASE NUMBER: UDC-15-00440
PREPARED BY: Joshua M. Tetzlaff
PUBLIC HEARING: August 10, 2015

SUBDIVISION CODE: CSN

OWNER/AGENT: Leonard Golding
3714 Rawlins Street
Cheyenne, WY 82001

307.630.7019

PROJECT: Coulson Addition Annexation

WORK DESCRIPTION: An annexation application for a county pocket.

LOCATION:

1. Legal Description: a portion of Lot 6, all of Lots 7 & 8, and the west 12 feet of Lot 9, Block 2, plus that adjacent 8 feet of vacated alley, Coulson Addition, Laramie County, Wyoming
2. Location: north of and adjacent to Rawlins Street, west of McCann Avenue
3. Address: 3714 Rawlins Street

SIZE: 20,909 SF

CURRENT ZONING: County MR Medium Density Residential

PROPOSED ZONING: MR-2 Medium Density Residential-Developing

EXISTING LAND USE: Single Family Residential

PROPOSED LAND USE: Single Family Residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Undeveloped	MR-2	City
South	Residential	MR-2	City
East	Residential	MR	County
West	Residential	MR	County

EXECUTIVE SUMMARY:

This annexation application was submitted for a parcel of about 20,000 SF of land on Rawlins Street, west of McCann Avenue. This application was submitted along with a zone change application so that the property can have a City zone district. The purpose of this annexation is the owner would like to connect to City sanitary sewer. The owner has already hooked to City water, which occurred in 1994.

PlanCheyenne supports this annexation. This annexation helps to address a county pocket in Cheyenne. Further development beyond connecting to City sanitary sewer is not planned at this time.

Due to meeting the review criteria found in Wyoming State 15-1-402, staff recommends approval of this annexation.

PlanCheyenne:

PlanCheyenne has designated this property as Urban Residential on the future land use map and is found within the Urban Service Boundary. Within the Urban Residential land use, a desired characteristic according to PlanCheyenne is to connect to City water and sanitary sewer. The purpose of this annexation is to connect to sanitary sewer. This annexation is consistent with the goals of PlanCheyenne.

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

Annexing this property will allow the owners to connect to City sanitary sewer instead of using a septic system. It will also allow them to have Cheyenne police and fire services available to their property in the event of an emergency.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This property is already a part of the City naturally, geographically, economically, and socially. This area is already developed and would be consistent with the surrounding area.

LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

With the property being part of a county pocket, it is logical that the property is annexed.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

This property has contiguity on both its northern and southern borders, for a total of about 53% contiguous. This contiguity fulfills the requirements by Wyoming statute.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to service the annexed area pursuant to W.S. 15-1-4102.*

A utilities franchise is in place to service this property.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was sent on July 10, 2015.

ANNEXATION REPORT DATA: In compliance with W.S. § 15-1-402(c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Development will require extension of water and sewer services, which are available to the subject property. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

Reviewing Agencies w/ Comments:

- Board of Public Utilities (Linda Gunter) **(FYI)**
 - o The Board of Public Utilities has existing Sewer Main just north of Lots 7 & 8. The existing Sewer Main runs west to the east along the alley. The BOPU will not give the approval to vacating 8' of alley. There is a 16' Utility Easement for the existing 8" sewer main.
 - o The BOPU recommends the approval of Annexation for Coulson Addition Block 2 Lots 7, 8 and the west 12' of Lot 9. The address 3714 Rawlins Street has had a water account with the BOPU since May 9th, 1994. After annexation is complete, the owner must remove the septic system and apply to the BOPU to hook up to the existing 8" sanitary sewer main in the alley.
- City Surveyor (Jack Studley) **(FYI)**
 - o Boundary data and legal descriptions appear in order.
- County Planning & Development (Brett Walker) **(FYI)**
 - o Unknown whether this property is subject to any infrastructure reimbursement.
- Development Department (Josh Tetzlaff) **(Correct Prior to Approval)**
 - o In the vacated alley north of the lot at the northwest corner of the intersection of Rawlins St and McCann Ave, the vacated alley says it is part of Robert's Subdivision. Is this correct as everything else says Roger's Subdivision. Please check and make corrections if needed.
- Environmental Health Department (Roy Kroeger) **(FYI)**
 - o Laramie County Small Wastewater System Regulations.
 - o The septic tank shall be removed or crushed and filled when connection to the public sewer is made. Contact this office for a verification inspection once completed.
 - o If the well is abandoned in shall be done in accordance with WY State Groundwater Engineer Office Standards.
- Land Records Technician (Harry Osbourn) **(Correct Prior to Approval)**
 - o The annexation petition itself doesn't mention the adjacent vacated alley ROW that is to be included and it does mention Lot 6 but only part of Lot 6 is to be included in this annexation.

Reviewing Agencies w/o Comments:

- Charter (Kurt Quinlivan)
- Cheyenne Light, Fuel & Power (Jack Whyatt)

- City Engineer (John Hall)
- County Assessor (Clarice Blanton)
- Development Department (Brandon Cammarata)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Fire Department (Jim Schamerhorn)
- Metro Planning Office (Nancy Olson)
- Parks and Recreation Department (Teresa Moore)
- Police Department (Brian Kozak)
- Urban Planning (Matt Ashby)

Reviewing Agencies not Responding:

- CenturyLink (Bob Bates)
- County Attorney (Mark Voss)
- County Clerk (Vicki Swanson)
- County Fire District #2
- County Public Works (Justin Arnold)
- County Sheriff (Danny Glick)
- High West Energy (Lloyd Sisson)
- Laramie County Conservation District (Jim Cochran)
- Public Works (Vicki Nemecek)

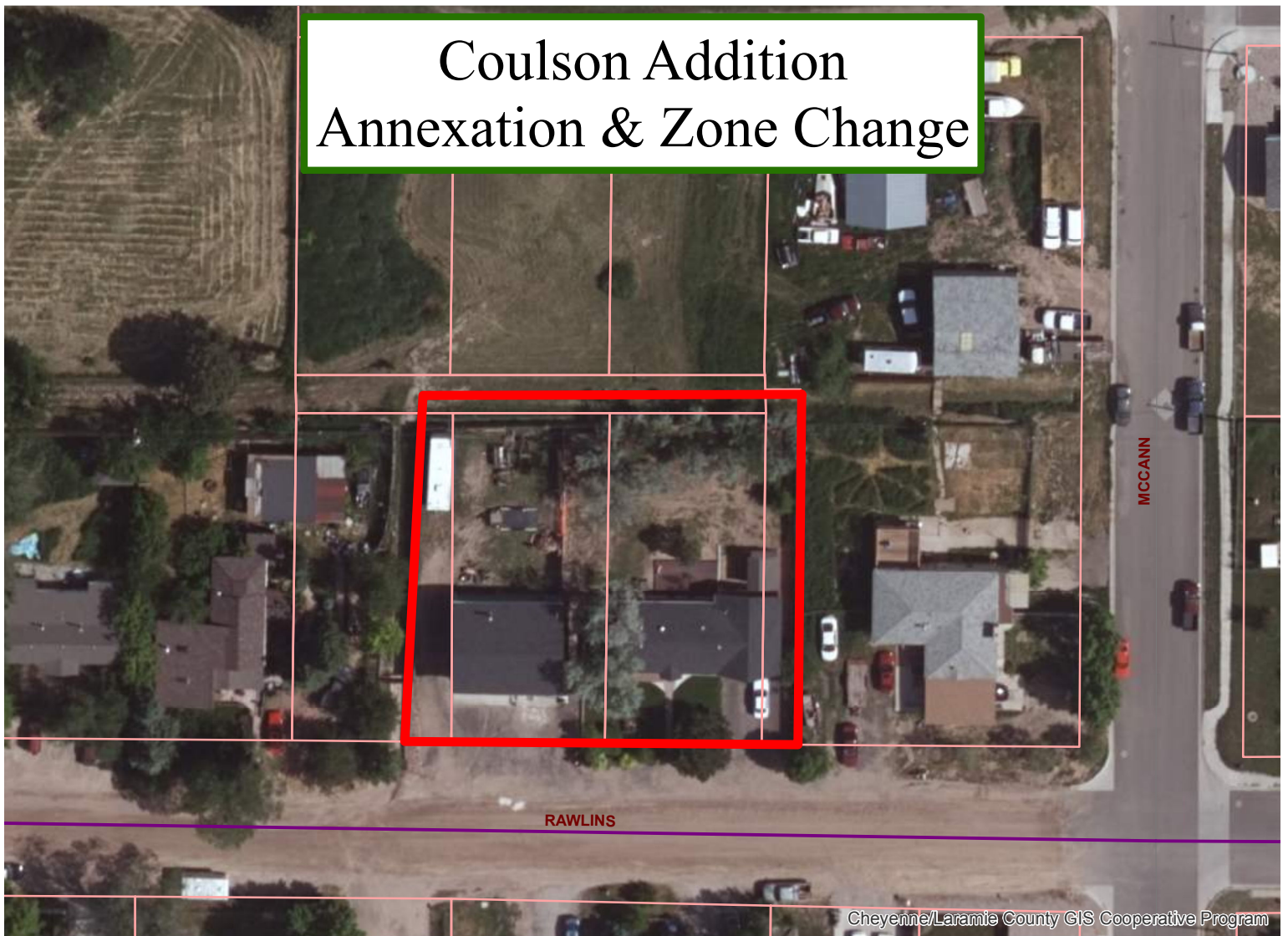
Other Comments Received:

- None

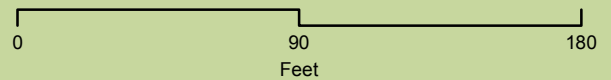
Encl: Annexation Ordinance
Annexation Map

Cc: Agent
Owner
File

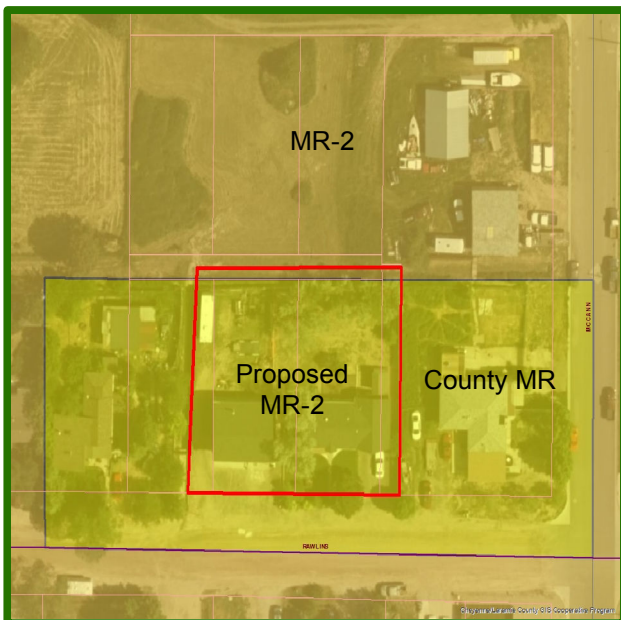
Coulson Addition Annexation & Zone Change



Applicant: Leonard Golding
Application Numbers
Annexation: UDC-15-00440
Zone Change: UDC-15-00441

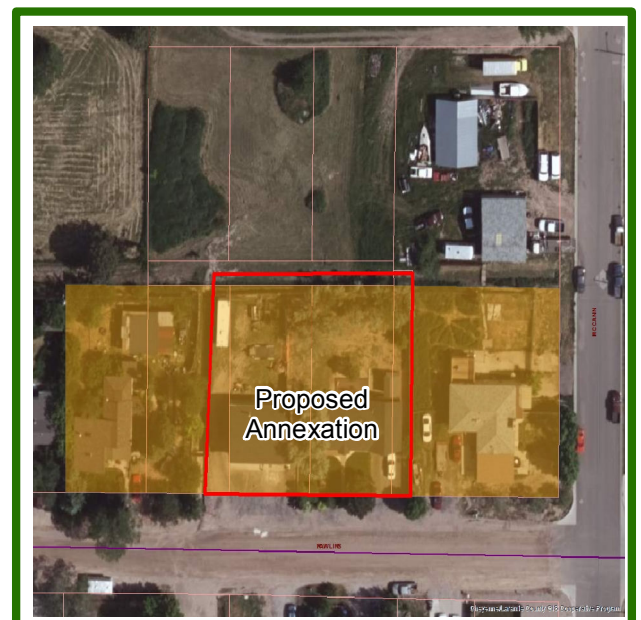


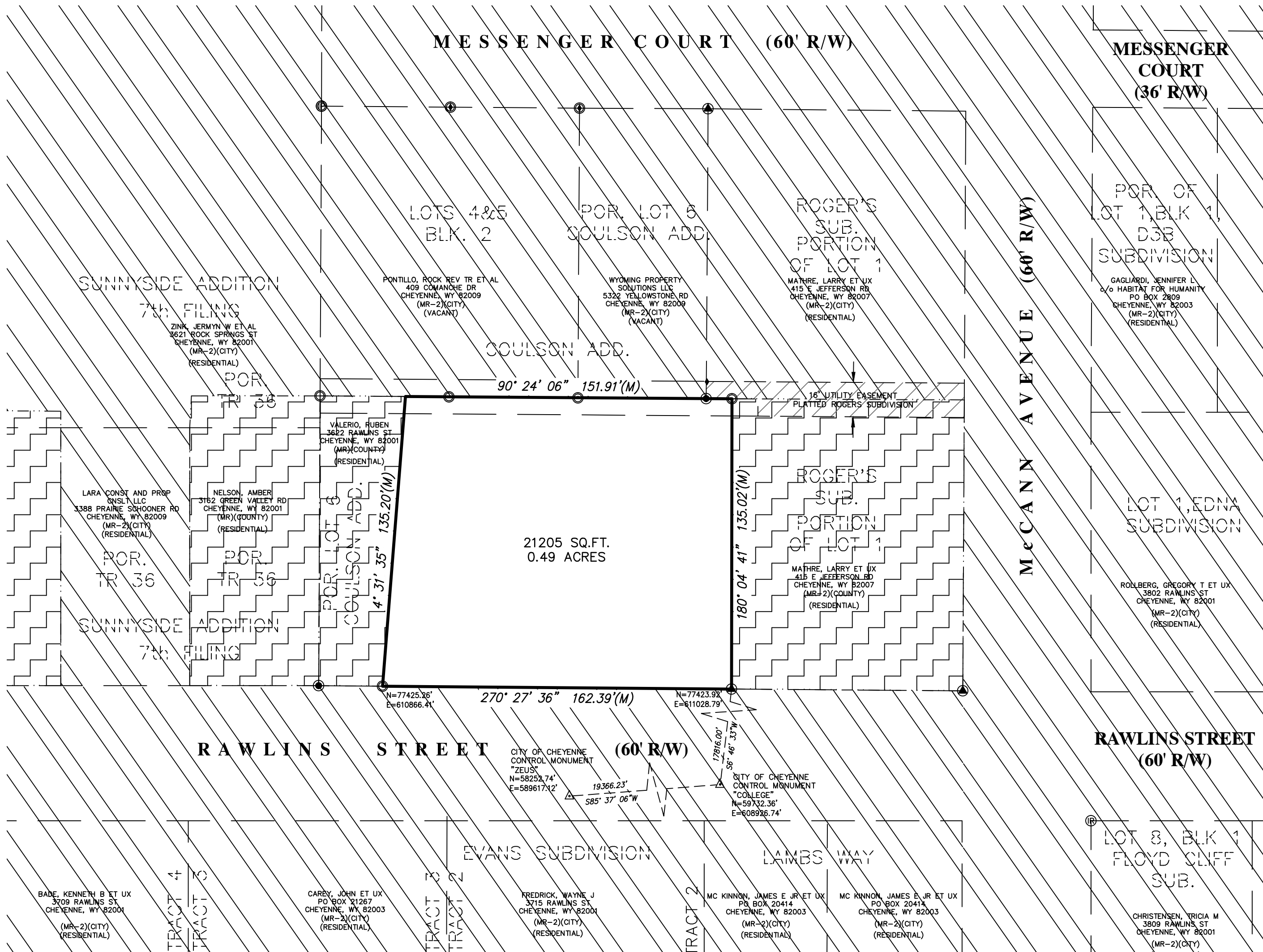
Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

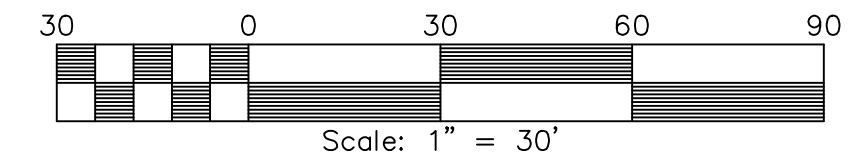
Annexation





LEGEND

- SET 5/8" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- ◆ FOUND MAG NAIL
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1 1/2" ALUMINUM CAP STAMPED "P.L.S. 3881"
- ⊙ FOUND 1/2" IRON PIPE
- (M) DENOTES MEASURED DATA THIS SURVEY
- (P) DENOTES PLAT DATA PER DOWNEY ADDITION
- [Hatched Box] OTHER LANDS CURRENTLY OUTSIDE OF THE CITY OF CHEYENNE CORPORATE LIMITS (COUNTY)
- [Diagonal Lines Box] LANDS CURRENTLY INCORPORATED WITHIN THE CITY OF CHEYENNE CORPORATE LIMITS



LEGAL DESCRIPTION

A PORTION OF LOT 6, ALL OF LOTS 7 & 8, AND THE WEST 12' OF LOT 9, BLOCK 2 PLUS THAT ADJACENT 8' OF VACATED ALLEY, COULSON ADDITION, LARAMIE COUNTY, WYOMING.

ZONING

EXISTING ZONING MR (COUNTY)
PROPOSED ZONING MR-2

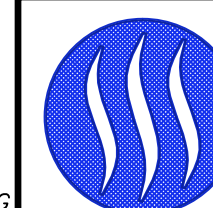
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ANNEXATION MAP FOR

A PORTION OF LOT 6, ALL OF
LOTS 7 & 8, AND THE WEST 12' OF
LOT 9, BLOCK 2 PLUS THAT ADJACENT
8' OF VACATED ALLEY
COULSON ADDITION
LARAMIE COUNTY, WYOMING.

PREPARED JUNE, 2015



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com

NOTES

- BASIS OF BEARINGS - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "COLLEGE" & "ZEUS".
- NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN SPECIAL 100-YEAR SPECIAL FLOOD HAZARD AREA AS SHOWN ON FIRM PANEL NO.56021C1094F, DATED JANUARY 17, 2007.
- WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU.
- ALL UTILITIES TO BE PROVIDED ADJACENT TO PARCEL.
- NEAREST FIRE HYDRANT AT NORTHEAST CORNER OF EXISTING MCCANN AVENUE AND RAWLINS STREET.
- CURRENT INCORPORATED CITY LANDS ABUT APPROXIMATELY 54% OF THE 584.52' PARCEL PERIMETER.

APPROVAL

Approved by the Council of the City of Cheyenne, Wyoming this
_____ day of _____, 2015.

Mayor _____ ATTEST: City Clerk _____

VICINITY MAP

